

26STCV09776 26STCV09776

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 26STCV09776 Hearing Date: September 22, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: Tuesday, September 22, 2026

Case Name: Jehan Semper v. County of Los Angeles, et al.

Case No.: 26STCV09776

Motion: Motion for Reconsideration

Moving Party: Plaintiff Jehan Semper

Responding Party: Defendant County of Los Angeles

Notice: OK

Ruling: The motion for reconsideration of the order sustaining the demurrer is DENIED.

If counsel do not submit on the tentative, they are strongly encouraged to appear by LACourtConnect rather than in person due to the COVID-19 pandemic.

BACKGROUND

Plaintiff Jehan Semper, proceeding in propria persona, filed this action on March 26, 2026, against Defendant County of Los Angeles and Los Angeles General Medical Center. Plaintiff's claims arise out of a laparoscopic appendectomy performed on

or around December 3, 2024, at Los Angeles General Medical Center, and subsequent post-operative follow-up appointments. The Complaint alleges ten causes of action: (1) General Negligence, (2) Medical Negligence, (3) Professional Negligence, (4) Negligent Post-Operative Care, (5) Lack of Informed Consent, (6) Lack of Consent/Battery, (7) Intentional Infliction of Emotional Distress (IIED), (8) Negligent Infliction of Emotional Distress (NIED), (9) Failure to Provide Access to Medical Records, and (10) Violation of Civil Rights under 42 U.S.C. § 1983.

On July 22, 2026, the court sustained the demurrer of Los Angeles County to the entire complaint. The demurrer was sustained without leave to amend on the first nine causes of action, and Plaintiff was granted leave to amend on the tenth cause of action.

On August 3, 2026, Plaintiff filed a first amended complaint for (1) General Negligence, (2) Medical Negligence, (3) Professional Negligence, (4) Negligent Post-Operative Care, (5) Lack of Informed Consent, (6) Lack of Consent/Battery, (7) Intentional Infliction of Emotional Distress (IIED), (8) Negligent Infliction of Emotional Distress (NIED), (9) Failure to Provide Access to Medical Records, and (10) Violation of Civil Rights under 42 U.S.C. § 1983.

DISCUSSION

APPLICABLE LAW

“A motion for reconsideration may only be brought if the party moving for reconsideration can offer ‘new or different facts, circumstances, or law which it could not, with reasonable diligence, have discovered and produced at the time of the prior motion. (Citations.) A motion for reconsideration will be denied absent a strong showing of diligence.” (Forrest v. State Of California Dept. Of Corporations (2007) 150 Cal.App.4th 183, 202 disapproved of and overruled on unrelated grounds in Shalant v. Girardi (2011) 51 Cal.4th 1164, 1172 (footnote 3); New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212–213; Baldwin v. Home Sav. of America. (1997) 59 Cal.App.4th 1192, 1199; Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) Disagreement with a ruling is not a new fact that will support the granting of a motion for reconsideration. (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1500.) A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (Id., at p. 1499.) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Ibid.) A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499.) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Id.)

APPLICATION TO FACTS

Plaintiff In Pro Per

“Although self-represented litigants are not entitled to special treatment, they are entitled to the same treatment as a represented party. ... ‘Trial judges must acknowledge that in propria persona litigants often do not have an attorney’s level of knowledge about the legal system and are more prone to misunderstanding the court’s requirements.’ (Citation). When one party has counsel and the other does not, the trial court ‘should monitor to ensure the in propria persona litigant is not inadvertently misled, either by the represented party or by the court... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson.’” (Petrosyan v. Prince Corp. (2013) 223 Cal.App.4th 587, 594.)

First through Ninth Causes of Action

The court sustained the demurrer on the first nine causes of action due the failure to timely present a government claim. The court found Plaintiff became aware of any potential claims arising from the alleged provision of substandard medical care no

later than January 2025 based on Plaintiff's own admissions. No claim presentation occurred within six months (by July 2025). The June 12, 2025, complaint letters directly sent to the hospital were not considered sufficient for purposes of establishing "substantial compliance" with the Government Claims Act. The ultimately presented claim dated September 10, 2025, was too late.

Plaintiff contends the court committed reversible error in sustaining the demurrer without leave to amend. Plaintiff reiterates the factual basis of the claims, and emphasizes accrual of the claims in September 2025, rather than January 2025. Any delay was excused by the alleged refusal to earlier produce medical records. Plaintiff therefore concludes the court misapplied the discovery rule, and denial of leave to amend was improper.

County of Los Angeles in opposition challenges the lack of any new evidence or law altering the positions. County of Los Angeles also provides substantial response to the factual positions.

The court record shows no reply on file.

The subject motion presents no actual new evidence or change in the law supporting relief, and instead depends on a disagreement with the court order. The standard governing a motion for reconsideration bars the readdressing of positions already considered by the court simply based on dispute with the ruling, and interest in a second chance for argument. The court considered the positions regarding accrual of the statute of limitations, and finds no new basis for an alteration of the prior findings. The position therefore constitutes an improper attempt at repeated argument based on a disagreement with the court order rather than a position meeting the standard for relief.

Tenth Cause of Action

Plaintiff filed a first amended complaint, which includes the tenth cause of action. The motion is DENIED as MOOT as to the tenth cause of action.

CONCLUSION

Plaintiff Semper's motion for reconsideration of July 22, 2026, order sustaining the demurrer is DENIED as to the first through nine causes of action, and DENIED as MOOT on the tenth cause of action.

A demurrer and motion to strike the first amended complaint by County of Los Angeles remains on calendar for October 7, 2026.

Semper give notice.

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